Jessica Mendes Ford

Dr. Angela Fritz

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Preserving Culture, Preventing Harm:

Ethical Risks of Social Media Preservation for Immigrant Communities

Abstract

This paper explores the complex practice of preserving born-digital social media records, questioning whose needs it serves and whose it might unintentionally harm. While digital preservation is often seen as a neutral or benevolent cultural stewardship practice, the long-term retention and increased accessibility of social media records can make these materials available for secondary uses that place vulnerable populations at risk. This study considers the risks associated with social media preservation for immigrant communities in the United States, who are already subject to heightened state surveillance and data-centric enforcement actions. Using the OAIS Reference Model's concept of Designated Community as an analytical tool and examining case studies of social media archiving projects, the author questions assumptions about data permanence, openness, and access that may lead digital preservationists to overlook the potential risks associated with our practices and investigates how to strike a balance between preservation and protection for vulnerable communities.

Introduction

This research explores the complex practice of preserving born-digital social media records, questioning whose needs it serves and whose it might unintentionally harm. While digital preservation is often seen as a neutral or benevolent cultural stewardship practice, the long-term retention and increased accessibility of social media records can make these materials available for secondary uses that place vulnerable populations at risk. This study considers the risks associated with social media preservation for immigrant communities in the United States, who are already subject to heightened state surveillance and data-centric enforcement actions. In 2025, the Electronic Frontier Foundation reported on proposals by the Department of Homeland Security to collect social media identifiers on immigration benefits forms, arguing that doing so would infringe on immigrants' privacy and free speech rights (Cope and Hussain). These are not new concerns.

As early as 2019, the Brennan Center for Justice wrote about the concerning trend of Homeland Security Investigations conducting surveillance on First Amendment-protected expression, often using unreliable social media data. The risks of this surveillance "include the chilling effect on speech, intrusions into privacy, and the likelihood of discrimination," with little evidence that such data would enhance safety for the country ("Social Media Surveillance"). However, this type of surveillance would impact American citizens, residents, and immigrant populations. News stories like these, alongside foundational digital preservation concepts, brought about the following research questions: (1) How do current digital preservation frameworks consider access and permanence in relation to social media records? (2) In what ways might preserving born-digital social media records expose vulnerable communities to new kinds of surveillance and harm? (3) How can digital preservationists reinterpret the OAIS

concept of Designated Community to better support differentiated access and security for at-risk populations?

By placing social media archives within broader discussions about access, permanence, and community in digital preservation, this author argues for a critical evaluation of preservation systems, not only in terms of what they save but also in how preserved data circulates, how it could be repurposed, and how it could be used to harm communities that face unique risks from data permanence and visibility. This research resonates most closely with the conference theme of "community" by examining the interactions between preservation infrastructures and communities that face unique risks from data permanence and visibility. It also addresses the theme of "preservation" by questioning the fundamental assumptions embedded in current preservation models. This research approach includes a literature review, case study analysis, and a critical analysis of the OAIS Reference Model, with particular focus on the Designated Community. Throughout this paper, the terms "archivist," "preservationist," and "digital preservationist" are used interchangeably to refer to individuals who collect and preserve cultural heritage materials from or about a specific community or group.

Literature Review: Ethics, Permanence, and Potential Harm

Research Question 1: How do current digital preservation frameworks consider access and permanence in relation to social media records?

In the legal and ethical landscape of digital preservation, a gap exists between corporate and institutional practices and users' privacy expectations. The existing literature on digital preservation theory, archival ethics, and social media archiving—particularly discussions of access, permanence, and potential harm—highlights the disconnect between corporate

operations, archival practice, and users' perspectives and engagement with social media platforms.

The announcement of the Twitter Archive at the Library of Congress in 2010 was the first time many social media users considered that their "fleeting content" could be of interest to researchers or preserved in a more permanent way than they had imagined. As Fondren and Menard McCune note, "But the permanent and long-term nature of the Library's Twitter Archive has challenged the widespread notion of social media as ephemeral content" (41). In fact, that sense of ephemerality, reinforced by the brevity required by the strict character limit, was part of the platform's original appeal. Not just on Twitter but on other social media platforms, many users seem to have a sense of ownership over the content they post and their "pages," "walls," "feeds," or whatever the terminology du jour may be. This author recalls friends posting statements like "Facebook does not have rights to any of the photos I upload or share," as if anything they posted to their account would hold weight against the social media giant's legal team or the End User License Agreement to which they consented by using the platform and uploading images to it in the first place. Unfortunately, this author's grade school acquaintances, extended family members, and many others who use social media "are not always aware that their content can be used for the sake of research and might subconsciously expect their data to remain private" (Zinaman 44). This lack of awareness represents an ethical mismatch between how end users imagine social media as being *for* them, while in reality the platforms are for-profit companies with "terms and conditions . . . intentionally rendered long and difficult to comprehend so that platforms can offer up users' data to third party corporations for profit" because "most users do not carefully read" the End User License Agreements (Zinaman 44-45).

For immigrant communities, misconceptions about information communications technologies like social media apps are often exacerbated. Guberek et al. found that undocumented immigrants in the United States prefer apps like Facebook and WhatsApp because they are free, familiar, easy to use, and already used by members of individuals' social networks (6). Immigrants use these apps primarily for video calls, voice messages, and photo sharing (6). Facebook and WhatsApp seem practically ubiquitous in enabling continued contact with friends and family in home countries and in supporting communication and coordination within local immigrant communities. Despite the widespread adoption of these platforms among immigrant users, overall understanding of privacy settings and controls is limited, with concerns tending to focus on identity theft or unauthorized access rather than broader systemic risks (Guberek et al.6). This limited understanding of the technologies creates a privacy paradox, in which individuals struggle to put their privacy intentions into action (2). Social media platforms also exacerbate boundary turbulence, which occurs when information about an individual is disclosed by others (2). Guberek et al. argue that for vulnerable populations like undocumented immigrants, the encroachment of technology increasingly erodes these boundaries, such as the ability for others to instantly post geolocated photos, which can jeopardize the safety of those depicted.

In addition to this ethical gap, a concerning legal gap is exposed by the disparity between analog and digital records. As more of our cultural heritage, creative output, and personal data are digitized or born-digital, existing copyright and privacy laws have not kept pace, particularly in the United States. As Zinaman points out,

> Section 108 of the U.S.' 1976 Copyright Act allows libraries and archives to reproduce and distribute certain copyrighted works without permission for the purposes of

> preservation, replacement, and research, but since this was enacted during the analog era, it has remained unclear how far this law can be extended towards digital media. (44)

Therefore, even when social media content falls under copyright protections ("Are Tweets"), libraries and archives could legally copy large amounts of people's content without their knowledge or consent in order to document and preserve records of community events or groups. Documenting community memory may seem innocuous and even praiseworthy—and it is, in many ways. Collecting social media artifacts is one way that community memory institutions can fill gaps and address archival silences that have historically ignored or minimized the stories of marginalized and minoritized groups.

Research Question 2: In what ways might preserving born-digital social media records expose vulnerable communities to new kinds of surveillance and harm?

Unfortunately, this type of reparative work is a double-edged sword because, if not undertaken mindfully, it could unintentionally perpetuate harm on members of marginalized and minoritized communities. Sumaita notes, "as it becomes easier to track and maintain records of people's lives through technology and innovation, the disparity in privacy rights seems to be further perpetuated" (2). Online archives documenting activism and protest activities have already been subject to archival surveillance, that is, the use or attempted use of digital archives to monitor individuals or groups by government agencies, law enforcement agencies, or data mining companies. In an example described in a white paper published by Documenting the Now, archivist Ed Summers refused a request from a data-mining company for Twitter datasets collected during the Ferguson protests after uncovering that its business model involved selling data to law enforcement and security services (Jules et al. 5). This situation is likely not unique,

and it underscores the importance of developing and adhering to ethical practices grounded in engagement with and understanding of the communities whose voices and stories we seek to uplift and preserve.

Undocumented immigrants and migrants especially face increased risks of discrimination and surveillance, and there is a physical cost of data exposure for vulnerable populations, including identity theft, exploitation, and physical harm (Tabassum and Faklaris 1). "Understanding these threats is vital for raising awareness and guiding research towards effective solutions and policies to protect migrant digital privacy" (Tabassum and Faklaris 1). Targeted digital literacy education is one pathway toward empowering immigrants to protect their digital data, though whether that type of outreach and educational effort falls within the scope of archives and community memory institutions is perhaps beyond the scope of this paper. Even so, organizations that collect social media data can take additional steps to mitigate harm, as shown by case studies of various archival projects.

Case Study Analysis: Real-World Digital Preservation Choices

The following synthesis examines digital preservation choices in real-world contexts, highlighting ethical considerations and strategies used by archivists in case studies by Ashlyn Velte, Lisa Lindström, and Michelle Caswell to address privacy, consent, and the protection of vulnerable subjects from harm or surveillance.

Ashlyn Velte: Ethical Practices in University-Led Activist Archives

Velte interviewed three university archivists who collected social media data on student activist activities on their campuses. She refers to them as "Archivist 1, 2, and 3" to preserve

their anonymity, as few university archives were collecting this type of data at the time of her research (2018). They each took different approaches to collecting and providing access to preserved social media data; what their approaches have in common is demonstrating that the repository's goal is historical preservation, not surveillance of student activities. Archivist 3 in particular emphasized the importance of outreach and relationship-building with student groups so that they trust the archives and "'feel comfortable depositing their records with us'" (Velte 121). That an archivist took time to engage with the community and build relationships shows that there can, and should, be more than simply the transactional interactions of data ingest and dissemination between an archive and its community.

Archivist 1 planned to provide moderated access to social media data through a controlled-access model, requiring researchers to view the data on-site in a reading room rather than making it publicly available (Velte 123-124). The reading room approach prevents sensitive data from being easily scraped or weaponized online. Another approach to respecting social media users' privacy and consent is the "hydration" method, a strategy Archivist 1 also considered. Rather than providing datasets that include usernames and tweet content, the "hydration" method provides researchers with only tweet IDs "that the researcher then populates (or 'hydrates') with the content of the tweet using Twitter's API. Any tweets deleted since their IDs were archived have no content to hydrate the ID," respecting users' choice to remove their content from the public record (124). However, this strategy depends on the social media company, in this case, Twitter, preserving user content and continuing to make it accessible via the API. Whether by user deletion or changes in company practice, long-term access to content cannot be guaranteed with the "hydration" method.

Archivists 2 and 3 prioritized account-based scoping for their social media collections in order to facilitate obtaining consent to make the preserved content from activist student groups publicly available (Velte 122). Account-based scoping enabled these archivists to seek permission from account holders and activist group leaders, whereas harvesting social media data from hashtags could yield larger datasets but might also capture data from individuals who never intended to be archived, and the greater volume of data capture could make seeking consent impractical. In addition to ruling out hashtag-based scoping of social media content, Archivist 2 hosted collection drives for analog and digital materials from student activists on the university's campus, offering one in the student center and another in the archive building, where students could donate materials with greater anonymity (118).

Velte's university-led activist archives focused on collecting social media data that recorded student activism in the United States. Collectively, the university archivists employed protective measures to handle students' social media data ethically. Their tactics include relationship building for trust, moderated and controlled access, the "hydration" method, account-based scoping for consent, and providing safer, less public ingest locations. In other parts of the world, data privacy is not just an ethical consideration, but also a legal one.

Lisa Lindström: Swedish Case Studies on Online Activism

While Lindström's case study examples focus on activist archival projects that took place in Sweden, the strategies those projects employed are transferable to archives in the United States, or anywhere that surveillance of collections and potential harm to subjects or donors are considerations. For these Swedish archival projects, privacy concerns go beyond mere ethics, as the General Data Protection Regulation (GDPR) in the European Union governs the handling

and protection of personal data and shapes how archives collect, preserve, and make accessible the personal data they hold.

Three of the projects that Lindström examines acquired materials through voluntary submission (37-38). The organizers of the Musikverket #MeToo project required activists to anonymize all stories before handing them over (43). This pre-ingest anonymization serves the dual purpose of protecting survivors from privacy violations and the institution from potential slander allegations. On the other hand, a project to create a Pride 2018 "time capsule" collected voluntary submissions via email and asked for "the name of the person holding legal rights over the material" (Lindström 33, 40). Additionally, for the Pride 2018 collection, "any individuals featured in the material, such as images, had to provide name and consent for being included in the archive" (43). Avoiding broad harvesting methods, such as hashtag-based scoping, in favor of voluntary submissions ensured that those included in the archives were knowingly participating and enabled the project organizers to protect their communities' privacy and security while abiding by GDPR requirements.

The DigiFacket project collected voluntary submissions of social media feeds from trade unions, which required serious consideration of privacy needs as "trade union membership is per definition sensitive information protected by law in Sweden" (Lindström 47). As a result, the DigiFacket archive implemented more stringent data protection strategies than the other projects in Lindström's case studies. First, the project implemented a five-year security embargo with no access at the request of the trade unions to protect members from potential threats posed by far-right extremist groups (47-48). After the embargo period ended, the archive would limit access to verified researchers who must provide an approved ethical plan for their research (48). Finally, to prevent hacking, data leaks, or unauthorized computational analysis of sensitive

personal data, DigiFacket kept its database and search functions entirely offline within physical archive buildings (Lindström 48). Although this is a unique case, the DigiFacket project demonstrates that ethical preservation of social media data is possible, enabling the documentation of community memory and facilitating future research, even when privacy and surveillance risks are paramount.

Michelle Caswell: Feminist Ethic of Care and SAADA's Islamophobia Project

Unlike Velte's work and Lindström's work, which focus on activist archival projects, Caswell works with the South Asian American Digital Archive (SAADA). This project documents the cultural heritage of specific immigrant communities. In fact, Caswell's research on applying a feminist ethic of care to a SAADA project documenting Islamophobia was the only example of scholarly work this author found that specifically touches on the potential surveillance implications of archiving the lived experiences of immigrants in the United States. A feminist ethic of care is a framework that emphasizes the interconnectedness and mutual responsibilities among people; from an archival lens, this framework positions archivists as caregivers bound to records creators and communities through radical empathy (Caswell and Cifor 244). Applying a feminist ethic of care to community-engaged digital preservation led SAADA to adopt several strategies that center the needs of the immigrant community it serves.

First, SAADA assembled an advisory board composed of individuals affected by Islamophobic violence, including academics, activists, and artists, who helped guide the project's design (Caswell and Cifor 250-251). This participatory governance model ensured that community members determined the project's focus and scope within a cultural narrative that made sense to them, rather than one imposed by well-meaning outsiders. Additionally, SAADA used grant funds to compensate community advisors for their emotional and intellectual labor, in

keeping with feminist principles of acknowledging and fairly compensating labor (250-251). As a digital community archive, SAADA employs a post-custodial model in which materials are digitized and described, but physical items are returned to the donors (249-250). Adopting this type of non-extractive stewardship model ensures that the community retains ownership and control of its cultural heritage materials.

The archive wanted to make sure that the project to document Islamophobia would not subject members of the community to further surveillance, especially as South Asians were already more likely to be targeted for surveillance since 2001 (Caswell and Cifor 250-251). Due to these concerns, and with input from the advisory board, the project focused on inviting community members to create video narratives that would contextualize historic records already in the archive's care rather than collecting new records of contemporary trauma (251). The choice reflects the ethos that "people's lives eclipse the stuff of archives" (256). As their project demonstrates, prioritizing community safety over preservation can mean sacrificing a complete historical record. Although this mindset is counter to the traditional archival impulse to collect records no matter what, it shifts the focus from the organization to the community for whom the collection exists.

Reimagining the "Designated Community" for At-Risk Populations

Research Question 3: How can we reinterpret the OAIS concept of Designated Community to better support differentiated access and security for at-risk populations?

The *Reference Model for an Open Archival Information System*, sometimes referred to as the "Magenta Book," more often referred to simply as the OAIS, or OAIS Reference Model, defines a framework for long-term digital preservation and access, including core functions,

roles, and requirements, and describes an archival preservation system's responsibility to its users. A revised version of the Magenta Book was published in 2024; all references and quotes to the OAIS Reference Model in this paper are taken from that version.

Many digital archives and repositories use the OAIS Reference Model as a framework for planning and implementing best practices in the quest to become OAIS-compliant, or at least to do digital preservation well. How do those preservation systems view their users? Can the concept of Designated Community be adapted to account for user vulnerability and risk? Here, the author explores these questions and proposes more nuanced approaches to security and access for populations at risk of archival surveillance.

In examining the OAIS model's inherent flexibility to adapt to specific community needs, the concept of Designated Community stands out as an essential component. Right at the outset, the Magenta Book sets forth that an OAIS-compliant archive "has accepted the responsibility to preserve information and make it available for a Designated Community" (Consultative Committee 1-1). Repositories must explicitly define their Designated Community and its Knowledge Base, recognizing that both are dynamic and may change over time (2-3, 2-4). To plan for long-term preservation, digital archives must consider how to adapt to technological change, evolving formats and media, and shifts within the Designated Community itself (1-1). The 2024 revision introduces new content that could make preservation systems more responsive and adaptive. One new feature is the Preservation Watch function, which monitors technological, political, financial, and environmental changes and incorporates feedback from the Designated Community (4-16).

When considering the implications for at-risk populations, including immigrant communities, digital preservationists can revisit the best practices outlined in the Magenta Book and explore this new content. For example, the OAIS model does not require unrestricted access, although that is evidently a common misconception given the word “open” in its title. “Open” refers to the open development of the model’s recommended practices and standards, not that archives that adhere to it be open access (1-1). In fact, archives can and should enforce access restrictions when necessary. The OAIS Reference Model includes provisions for security and differentiated service and access levels. Repositories determine the scope of producer and consumer groups, uphold access rights and restrictions, and must communicate them to affected parties (2-11, 2-13). This flexibility allows digital repositories to implement privacy-protective differentiated access models that are considerate of the needs of their donors, subjects, and users, enabling archives to protect their communities from archival surveillance and potential harm.

As shown above, the OAIS framework already supports tailored, equity-driven preservation practices. Digital preservationists must actively implement privacy protections and inclusive design to meet the needs of vulnerable communities. In the case studies explored by Velte, Lindström, and Caswell, archivists utilized practices such as moderated and controlled access and incorporating feedback from the Designated Community through advisory boards and relationship-building efforts. These are excellent tactics for operating responsive, adaptive preservation systems. However, preservationists can do more to apply a restorative lens to the implementation of the OAIS Reference Model.

Expanding the definition of Designated Community to include underrepresented groups is another tactic to approach preservation with restorative intent. Steinmeier argues that including underrepresented groups as defined subgroups within the Designated Community fits within the

existing model, including "the processes needed to give a voice to these groups and improve things based on their feedback" (2). Taking care to recognize diverse subgroups and understand the nuanced differences in their needs is essential, as "classifications such as immigrant, migrant worker, refugee, asylum seeker, and undocumented migrant highlight the varied rights and protections these individuals may have," according to the International Organization for Migration (Tabassum and Faklaris 2). While tailored privacy solutions are a key focus of this research, digital privacy is not the only consideration repositories must take into account to foster trust with their user communities.

Preservationists need to build buy-in from their communities for preservation systems to succeed.

> If we are to support and sustain open access to data, repository staff attention must shift to the perspectives, practices, and needs of their designated communities of users. This shift would change the balance of trust factors as presented in OAIS, which largely focuses on the internal workings of a data repository, and consider what it looks like for a data repository to act in ways that communicate integrity, identification, and structural assurance such that data reusers want to bestow trust. (Yakel 910)

One requirement for an OAIS-compliant repository is that its records are "Independently Understandable" to members of its Designated Community (Consultative Committee 1-12). A significant way to build trust with users is to go beyond the minimum requirements for acceptable archival description and consider usability: "are people able to search in their own language, are things described as people would describe it themselves? If not, chances are that, in practice, material is not considered findable by the designated community" (Steinmeier 2). For

immigrant communities, aligning descriptions with their native languages and cultural contexts goes a long way toward improving accessibility, ensuring materials are understandable and discoverable on community terms, and creating a sense of belonging and trust in the repository. The shift from system-centered to community-centered thinking enables preservationists to build trust through transparency, cultural competence, and responsiveness.

Conclusion

As seen in the case studies, archivists who collect social media data about potentially vulnerable populations are aware of the ethical and legal concerns. However, there do not seem to be many archivists or digital preservationists collecting social media as cultural heritage material at the time of writing. Much of the research about the digital preservation of social media data in archives focuses on activists and activism. Meanwhile, much of the research about digital technology and immigrants focuses on privacy and risk rather than on preserving cultural heritage. These findings indicate opportunities for future research on archival surveillance of vulnerable populations, especially immigrants, refugees, asylum seekers, and migrants. Other future research opportunities include case studies on social media archives focused on immigrant cultural heritage or on immigrant-centered archives that include social media collections. There also seem to be opportunities for community and institutional archives to begin collecting and preserving the social media cultural heritage of immigrant communities—implementing the restorative, inclusive practices discussed in this and other scholarship, of course.

The updated OAIS Reference Model includes functions that allow for tailored, equity-driven practices that center diverse Designated Communities. As archivists and digital preservationists, we must be willing to do the work to shift from internal, systems-focused

thinking to external, inclusive, community-centered thinking that prioritizes community safety over institutional hoarding of data and celebrates collaborative decision-making with members of the communities we exist to document, preserve, and serve. This work does not need to occur in isolation, nor should it. Tools and resources exist, such as the Society of American Archivists' *Documenting in Times of Crisis: A Resource Kit*. This kit includes guidelines, checklists, templates, policies, and more to assist repositories with documenting the aftermath of weather disasters and human-made tragedies. Documenting the Now also provides a collection of open-source tools and community-centered resources to facilitate the ethical preservation of web and social media content. With tools like these, collaboration with our communities of practice, and working in partnership with our user communities, preservationists collecting social media data can confront the ethical and legal tensions that arise between the pressure to collect and preserve and the restorative principle to honor the privacy and consent of donors and subjects.

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